

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202001389	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/21/2020 6:30 AM, Sunday, 02/02/2020 11:02 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 3/7/2022	Precinct: 60
Date/Time CV Reported Wed, 02/05/2020 8:33 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/19/2020 11:06 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Austin Fortunato	10745	966062	PSA 1
2. POM Jeffry Pazmino	14796	961081	PSA 1
3. POM Sean Santano	16407	966837	PSA 1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mark Kalczynski	25482	957723	PSA 1
2. POM Jonathan Grant	25509	947760	PSA 1
3. POF Dorina Hajderlli	20537	959681	PSA 1
4. POM Jason Mansour	31279	965304	PSA 1
5. POM Juan Rivera	18523	964242	PSA 1

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Austin Fortunato	Abuse: On January 21, 2020, Police Officer Austin Fortunato took a photograph of § 87(2)(b) [REDACTED]	A . Unfounded
B . POM Jeffry Pazmino	Abuse: On February 2, 2020, Officer Jeffry Pazmino took a photograph of § 87(2)(b) [REDACTED]	B . Substantiated
C . POM Austin Fortunato	Force: On February 2, 2020, Police Officer Austin Fortunato used physical force against § 87(2)(b) [REDACTED]	C . Exonerated
D . POM Sean Santano	Force: On February 2, 2020, Police Officer Sean Santano used physical force against § 87(2)(b) [REDACTED]	D . Exonerated

Case Summary

On February 5, 2020, § 87(2)(b) called the Internal Affairs Bureau and filed this complaint.

On January 21, 2020, at approximately 6:30 a.m., Police Officer Austin Fortunato of Police Service Area 1 allegedly responded to a 911 call at § 87(2)(b) in Brooklyn. PO Fortunato took a photograph of § 87(2)(b) on his personal phone (**Allegation A: Abuse of Authority: Photography – unfounded**).

On February 2, 2020, at approximately 11:02 p.m., officers responded to another 911 call at § 87(2)(b) in Brooklyn. Police Officer Jeffrey Pazmino took a photograph of § 87(2)(b) on his personal phone (**Allegation B: Abuse of Authority: Photography – substantiated**). PO Fortunato and PO Sean Santano pushed § 87(2)(b) against a wall while handcuffing him (**Allegations C and D: Force: Physical Force – exonerated**). § 87(2)(b) was arrested for criminal obstruction of breathing during this incident (**BR 01**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received body-worn camera footage (**BR 04-21**), the relevant aspects of which shall be discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: On January 21, 2020, Police Officer Austin Fortunato took a photograph of § 87(2)(b)

§ 87(2)(b) said (**BR 22-24**) in his CCRB interview that on an unidentified morning in January 2020, he called the police because he had trouble getting one of his sons to go to school. Officers came to his apartment, § 87(2)(b) in regard. § 87(2)(b) testified that PO Fortunato took a photograph of § 87(2)(b) on the officer's personal phone. § 87(2)(b) identified PO Fortunato not by name, but as the specific officer who handcuffed and arrested him on February 2, 2020 (see **Allegation C**). § 87(2)(b) did not mention this allegation in his intake call with IAB or in his initial phone statement.

Through review of SPIA and EVENT documentation (**BR 25-26**), the investigation determined that an EVENT for January 21, 2020 corresponded with § 87(2)(b) testimony. Per the EVENT documentation, § 87(2)(b) called 911 at 6:30 a.m. on January 21, 2020 because one of his sons allegedly had a knife in his hand. Per the EVENT documentation, PSA 1 roll call, and BWC from this incident (**BR 26-27, BR 17-20**), the following PSA 1 officers responded to this incident: Police Officer Jonathan Grant, Police Officer Dorina Hajderli, Police Officer Jason Mansour, and Police Officer Juan Rivera. None of the four responding officers took a photograph of § 87(2)(b) during their BWC activations (**BR 17-20**).

None of the four responding officers bore a resemblance to PO Fortunato in their MOS photographs (**BR 37-41**).

PO Fortunato said (**BR 28**) that he did not respond to the incident location on January 21, 2020.

Per the PSA 1 roll call for Tour 1 on January 21, 2020 (**BR 27**), PO Fortunato was not working at the time.

Per PO Fortunato's memo book (**BR 29**), January 21, 2020 was his regular day off.

While PO Fortunato did not work on the morning of January 21, 2020, the investigation kept the allegation pleaded to him because § 87(2)(b) specifically identified him as a subject and no officers who resembled PO Fortunato responded to § 87(2)(b) residence on January 21, 2020. Furthermore, none of the respond officers' BWC captured a similar allegation.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A be unfounded**.

Allegation (B) Abuse of Authority: On February 2, 2020, Officer Jeffry Pazmino took a photograph of § 87(2)(b)

§ 87(2)(b) said that at approximately 11:02 p.m. on February 2, 2020, he called the police regarding his son, who was breaking things inside the apartment. Approximately nine officers came to the apartment and spoke with § 87(2)(b) as well as his son for approximately 10-15 minutes.

Per PO Pazmino's BWC between the 00:00 and 00:10 timestamps (BR 13), he takes a photo of § 87(2)(b) sitting on a couch and then sends the photograph over iMessage.

PO Pazmino said (BR 30) that when he was at § 87(2)(b) apartment, he overheard the mother of the son, known to the investigation as § 87(2)(b) say that § 87(2)(b) had strangled § 87(2)(b) on the couch. As such, he took a photograph of § 87(2)(b) sitting on the couch to both depict the location and the suspect of the alleged crime. PO Pazmino took this photograph on his personal phone because he did not have his work phone on his person; he sent the photograph to his work phone. PO Pazmino and the other officers then took § 87(2)(b) into custody and arrested him for strangulation.

Per Patrol Guide Procedure 203-06 (BR 31), members of service are prohibited from using any personal electronic device, including cell phones, to take photographs during any police encounter.

Per NYPD Operations Order 20 (BR 32), members of service are permitted to use department-issued smartphones to photograph all incidents in which members of service take an individual in custody.

§ 87(2)(b) was a suspect who was taken into custody; § 87(2)(g)

§ 87(2)(b), it is recommended that Allegation B be substantiated.

Allegation (C) Force: On February 2, 2020, Police Officer Austin Fortunato used physical force against § 87(2)(b)

Allegation (D) Force: On February 2, 2020, Police Officer Sean Santano used physical force against § 87(2)(b)

§ 87(2)(b) said that officers ultimately directed him to step outside his apartment and into the building hallway. PO Fortunato told § 87(2)(b) he was under arrest and pushed § 87(2)(b) on his shoulder and back against the wall. PO Fortunato pushed § 87(2)(b) against the wall for a few seconds until other officers handcuffed him. § 87(2)(b) statements were generally consistent regarding this allegation.

PO Fortunato said (BR 28) that when he brought § 87(2)(b) to the hallway, he told § 87(2)(b) that he was under arrest and asked him to put his hands behind his back. § 87(2)(b) asked, "Why?" § 87(2)(b) was standing against one wall and did not immediately provide his hands. PO Fortunato informed § 87(2)(b) that he had to come along with the officers. § 87(2)(b) walked towards another wall, at which point PO Fortunato grabbed § 87(2)(b) wrists and placed him in handcuffs. At no point did PO Fortunato push § 87(2)(b) at no point actively resisted handcuffing.

Per PO Fortunato's BWC between the 08:35 and 9:20 timestamps (BR 10), PO Fortunato walks § 87(2)(b) into the hallway, tells him he is under arrest, and tells him to put his hands behind his back. PO Fortunato takes § 87(2)(b) left hand while PO Santano takes his right hand. The two officers guide § 87(2)(b) to the hallway wall and handcuff him. § 87(2)(b) right shoulder briefly makes slight contact with the wall, but no other body part touches the wall while the two officers handcuff him.

Police Officer Mark Kalczynski's, PO Pazmino's, and Police Officer Sean Santano's BWC activations (BR 12-13, BR 15), all between the 08:50 and 09:05 timestamps, corroborate the perspective shown by PO Fortunato's BWC.

The investigation determined that an appearance by PO Santano was unnecessary for this case as PO Santano's statement would not affect the recommended dispositions.

Per Patrol Guide Procedure 221-01 (BR 33), members of service must consider the following eleven factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; the actions taken by the subject of the force; the duration of the forceful action; the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; the number of subjects in comparison to the number of MOS; the size, age, and condition of the subject in comparison to the MOS; the subject's violent history, if known; the presence of a hostile crowd or agitators, and; whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

The BWC showed that § 87(2)(b) did not initially comply with PO Fortunato's instructions to place his hands behind his back when it was determined he was under arrest § 87(2)(g). It is therefore recommended that **Allegations C and D** be **exonerated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Fortunato has been a member of service for three years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Pazmino has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Santano has been a member of service for two years and this is his first CCRB complaint.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of September 16, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding to complaint (BR 35).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: Ethan C. Waterman
Signature

Inv. Ethan Waterman
Print Title & Name

July 13, 2021
Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>7/15/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date